



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*  
*Majority Research Staff*

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**HB 2086: vaccination mandates; masks; prohibition**

## **POWELL FLOOR AMENDMENT**

1. Removes the Federal government from the definition of *governmental entity*.
2. Makes a conforming change.

POWELL FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2086  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-681, Arizona Revised Statutes, is amended to  
3 read:

4 36-681. Governmental entities; masks; prohibition; definition

5 A. A governmental entity may not impose ON any RESIDENT OF THIS  
6 STATE A requirement to wear a mask or face covering ~~anywhere on the~~  
7 ~~governmental entity's premises~~, except where long-standing workplace  
8 safety and infection control measures that are unrelated to COVID-19 may  
9 be required.

10 ~~B. The requirements of this section do not apply to a special~~  
11 ~~health care district established pursuant to title 48, chapter 31.~~

12 ~~C.~~ B. For the purposes of this section, "governmental entity"~~[.]~~  
13 ~~1.]~~ means this state and any political subdivision of this state,  
14 including the judiciary, that receives and uses state tax revenues.

15 ~~[2. INCLUDES THE FEDERAL GOVERNMENT.]~~

16 Sec. 2. Section 36-685, Arizona Revised Statutes, is amended to  
17 read:

18 36-685. Vaccinations; prohibition; definition

19 A. ~~Any~~ NOTWITHSTANDING ANY OTHER LAW REQUIRING VACCINATIONS IN THIS  
20 TITLE OR TITLE 15 OR THE RULES ADOPTED PURSUANT TO THOSE TITLES, A  
21 government entity may not require a resident of this state to receive a  
22 vaccination ~~for COVID-19 or any variant of COVID-19~~ FOR ANY DISEASE OR  
23 VIRUS.

24 ~~B. Subsection A of this section does not apply to a health care~~  
25 ~~institution that is owned or operated by a government entity in this~~  
26 ~~state.~~

27 ~~C.~~ B. For the purposes of this section, "government entity"~~[.]~~

1       ~~1.]~~ means this state and any political subdivision of this state  
2 that receives and uses tax revenues.  
3       ~~[2. INCLUDES THE FEDERAL GOVERNMENT.]~~  
4       Sec. 3. Heading change  
5       The chapter heading of title 44, chapter 38, Arizona Revised  
6 Statutes, is changed from "BUSINESSES EXEMPT FROM MASK MANDATE" to  
7 "BUSINESSES - MASK AND VACCINATION MANDATES".  
8       Sec. 4. Title 44, chapter 38, article 1, Arizona Revised Statutes,  
9 is amended by adding section 44-7952, to read:  
10       44-7952. Businesses; requirement of mask or vaccination  
11               prohibited; exception  
12       A BUSINESS OPERATING IN THIS STATE MAY NOT REQUIRE THAT A PERSON DO  
13 EITHER OF THE FOLLOWING TO ENTER THE BUSINESS'S BUILDING OR PREMISES OR TO  
14 BE EMPLOYED:  
15       1. WEAR A MASK OR OTHER FACE COVERING, EXCEPT WHERE LONG-STANDING  
16 WORKPLACE SAFETY AND INFECTION CONTROL MEASURES MAY BE REQUIRED.  
17       2. RECEIVE ANY TYPE OF VACCINATION.  
  
18 Enroll and engross to conform  
19 Amend title to conform

KHYL POWELL

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